

5. **Notice Program.** The Court approves the form and content of the Class Notice and Request for Exclusion attached as Exhibits "C" and "D" to the Otkupman Declaration. The Settlement Administrator shall mail the Class Notice to all Class Members for whom addresses are reasonably ascertainable from Defendant's records no later than 14 days after receiving the class data from Defendant. For notices returned as undeliverable, the Administrator shall conduct address searches and re-mail within three business days.
6. **Opt-Out and Objection Period.** Class Members who wish to exclude themselves from the settlement must submit a written Request for Exclusion postmarked no later than 60 days after the initial mailing of the Class Notice (plus an additional 14 days for re-mailed notices). Objections to the settlement must be submitted no later than the same deadline. No PAGA employee may opt out of the PAGA portion of the settlement.
7. **Service Payment and Attorneys' Fees.** The Court preliminarily approves: (a) a service payment of **\$10,000.00** to Plaintiff Elsa Bautista; (b) PAGA penalties of **\$30,000.00** (allocated 65% to the Labor and Workforce Development Agency and 35% to Aggrieved Employees); and (c) attorneys' fees of **\$133,403.33** (33.33% of the gross settlement amount), plus reasonable costs subject to proof, to be paid to Class Counsel, with a 5% retention pending final approval. Final approval of these amounts is reserved pending the final approval hearing.
8. **Reservation of Rights.** This Order constitutes preliminary approval only and does not constitute a final determination of the fairness, reasonableness, or adequacy of the settlement, nor an endorsement of the merits of the underlying claims or defenses. The Court reserves the right to modify the settlement terms or deny final approval if the settlement fails to prove fair, reasonable, and adequate.
9. **Final Approval Motion.** Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
10. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney's fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
11. Plaintiff's Counsel shall prepare a proposed order consistent with this ruling, attaching a copy of this tentative ruling no later than ten (10) days from the date of this hearing.
12. No appearance is required at the hearing on September 9, 2026.

14. 9:00 AM CASE NUMBER: C24-03035
CASE NAME: ABDUL LATIFI VS. SAMMAH ENTERPRISE INC
BE RELIEVED AS COUNSEL RE: KYLE L. SCHRINER
FILED BY: SAMMAH ENTERPRISE INC

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 14, 15, and 17, which are the following motions:

1. Bibiyan Law Group's Motion to be Relieved as Counsel for Plaintiff Abdul Latifi filed by Gayane Ghandilyan, Esq. and Aspen Paxson, Esq. on April 13, 2026, with the original hearing date of

September 9, 2026 in the PAGA Case (C25-02567). This Motion is **moot** as the Court executed the order relieving Plaintiff's counsel on August 6, 2026. The hearing on September 9, 2026 is **vacated**. No appearance is required by Plaintiff's former counsel.

2. Bibiyan Law Group's Motion to be Relieved as Counsel for Plaintiff Abdul Latifi filed by Gayane Ghandilyan, Esq. and Aspen Paxson, Esq. on April 13, 2026, with the original hearing date of October 7, 2026 in the Class Action case (C24-03035). This Motion is **moot** as the Court executed the order relieving Plaintiff's Counsel on August 6, 2026. The hearing on September 9, 2026 is **vacated**. No appearance is required by Plaintiff's former counsel.
3. Schriner Law Firm PC's Motion to be Relieved as Counsel for Defendant Sammah Enterprises, Inc. dba Papa John's Pizza-Walnut Creek, filed by Kyle L. Schriner, Esq. on January 14, 2026, and originally set for hearing on April 8, 2026. This hearing was continued to September 9, 2026. This motion is **granted**. No appearance is required.

Background

Plaintiff Abdul Latifi ("Plaintiff"), an individual acting on behalf of others similarly situated, filed a Class Action Complaint (C24-03035) and a Complaint under the Private Attorney General Act ("PAGA") (C25-02567). Plaintiff is represented by the same law firm, Bibiyan Law Group, P.C., as attorneys of record. Defendant Sammah Enterprise Inc. dba Papa John's Pizza ("Defendant") entered an appearance in both cases. In the class action lawsuit, Defendant is represented by Schriner Law Firm, P.C. In the PAGA case, Defendant is self-represented, according to the register of actions.

Now, Defendant's Counsel seeks to be relieved as Counsel of Record in the class action lawsuit.

Analysis

California Rules of Court, rule 3.1362 and Code of Civil Procedure section 284 set forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon the order of the court, upon the application of either client or attorney, after notice from one to the other."

Furthermore, as Defendant's Counsel represents in his declaration to this Court, the California Rules of Professional Conduct set forth specific grounds under which an attorney is permitted to withdraw from representing a client as follows:

CRPC 1.16(b)(4): A lawyer may withdraw if the client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively.

CRPC 1.16(b)(5): A lawyer may withdraw if the client breaches a material term of an agreement with, or obligation to, the lawyer relating to the representation, and the lawyer has given the client a reasonable warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation.

Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Withdrawing Counsel. The Court acknowledges that the prejudice to Defendant is minimal, as there is ample time for Defendant

to retain new trial counsel. A trial in this case has not been set.

However, the Court is concerned that Defendant is a corporation. California law does not permit corporate entities to litigate an action in *propria persona*. Defendant will be required to retain counsel in both cases.

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Withdrawing Counsel to be Relieved as Counsel of Record. The Court makes the following orders:

Conclusion

1. Schrinier Law Firm PC's motion to be relieved as Counsel of Record for Defendant is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) lodged on January 14, 2026. The withdrawal shall be effective upon filing of proof of service of this Order and Form MC-040 on Defendant.
3. Prior to the effective date of withdrawal, Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to his former client by mail at the last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill out and file the change of address form with the Court.
4. Withdrawing Counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).
5. The Court schedules a Case Management Conference for December 10, 2026 at 8:30 a.m. Withdrawing Counsel shall provide notice to Defendant of this CMC and inform Defendant that they are ordered to appear.
6. The Clerk of the Court shall send written notice of the CMC for December 10, 2026 at 8:30 a.m. to Defendant in *propria persona*.
7. No appearance is required at the hearing on September 9, 2026.

15. 9:00 AM CASE NUMBER: C24-03035
CASE NAME: ABDUL LATIFI VS. SAMMAH ENTERPRISE INC
BE RELIEVED AS COUNSEL
FILED BY:
TENTATIVE RULING:
See Line 14.

16. 9:00 AM CASE NUMBER: C25-00727
CASE NAME: PATRICIA WELLER VS. CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
1ST AMENDED COMPLAINT
FILED BY: CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
TENTATIVE RULING:

Defendants California Health and Human Services and Department of Social Services ("Defendants")